

4. *Cestuis que trust may contract conditionally.*—The usual course is said to be for the *cestuis que trust*, who are the persons most interested in the matter, and who have the strongest motives for obtaining the highest possible price, to enter into a conditional contract, and then to obtain the assent of the trustee, who, when he has satisfied himself that the sum proposed * is the value of the property, [*424] sanctions a sale which is beneficial to his *cestuis que trust* (a).

5. *Valuation of the property.*—A trustee for sale must inform himself of the real value of the property, and for that purpose, will, if necessary, employ some experienced person to furnish him with an estimate (b). If the property be sold at a grossly inadequate value, it is a breach of trust, which affects the title in the hands of the purchaser (c).

6. *Each trustee responsible for the sale.*—A trustee who takes no active part in the business cannot excuse himself by saying he had nothing to do with the conduct of the other to whom the management was confided; for where several trustees commit the entire administration of their trust to the hands of one, they are all equally responsible for the faithful discharge of their joint duty by that one whom they have substituted (d).

7. *What time allowed for disposing of the estate.*—The trustees will be allowed a reasonable time for disposing of an estate, and though the instrument creating the trust direct them to sell “*with all convenient speed*,” that is no more than is implied by law, and does not render an immediate sale imperative (e). On the other hand, if the trust be to sell “at such time and in such manner as the trustee shall think fit,” this will not authorise the trustees as between them and

(a) *Palairt v. Carew*, 32 Beav. 568.

(b) See *Oliver v. Court*, 8 Price, 165; *Campbell v. Walker*, 5 Ves. 680; *Conolly v. Parsons*, 3 Ves. 628, note; *Sugd. Vend. & Purch.* 55, 11th ed.

(c) *Stevens v. Austen*, 7 Jur. N. S. 873.

(d) *Oliver v. Court*, 8 Price, 166, per Lord Chief Baron Richards; *In*

re Chertsey Market, 6 Price, 285, per eundem.

(e) *Buxton v. Buxton*, 1 M. & Cr. 80; *Garrett v. Noble*, 6 Sim. 504; *Fry v. Fry*, 27 Beav. 144; and see *Fitzgerald v. Jervoise*, 5 Mad. 25; *Vickers v. Scott*, 3 M. & K. 500; *Sculthorpe v. Tipper*, 13 L. R. Eq. 232; *Turner v. Buck*, 18 L. R. Eq. 301.